DIVISION BENCH **ITEM NO. R1**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ
CP (CAA) No. 13/ALD/2022 IN CA (CAA) No. 6/ALD/2022

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 17th February, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**AGARWAL FIN-LEASE AND INVESTMENT PVT. LTD. WITH TECHNICAL ASSOCIATES LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

Counsel Appeared Through Video Conferencing/ Physical Hearing (Hybrid Mode):

Sh. Shashi Kant Gupta, PCS. : *For the Operational Creditor*

Sh. Ajeet Kumar Singh, AOL. : *For the O.L. Alld./RD (NR)*

Sh. Krishna Agarwal, Sr. SC. : *For the Income Tax Department*

ORDER

Learned counsel for the parties are present through VC.

This is a second motion petition and the matter was earlier reserved. However, after reserving the matter the Income Tax Authorities have filed two Reports. Soft copies of which were filed on 15th February, 2023 and hard copies were filed on 16th February, 2023. Therefore, in order to provide an opportunity of hearing to the Applicants/Petitioners in the context of the Reports filed by the Income Tax Department, the matter has been reopened.

Learned counsel representing the Income Tax Authorities undertakes to file the remaining Reports within a period of ten days with advance copies to be supplied to the Applicants/Petitioners and response, if any, be filed within a period of one week.

-Sd- ***-Sd-***

The Reports filed by the Income Tax Authorities are taken on record. A cost of Rs.5,000/- is imposed upon the Income Tax Department to be paid in the Prime Minister's National Relief Fund.

Let the matter to come up for further hearing on 03rd March, 2023.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

17th February, 2023

Priya Agarwal
(Stenographer)